

HOUSE No. 1788

The Commonwealth of Massachusetts

PRESENTED BY:

Bradley H. Jones, Jr.

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act increasing the liability for permitting an intoxicated arrestee to operate a motor vehicle.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Bradley H. Jones, Jr.</i>	<i>20th Middlesex</i>	<i>1/14/2025</i>
<i>Kimberly N. Ferguson</i>	<i>1st Worcester</i>	<i>1/14/2025</i>
<i>Paul K. Frost</i>	<i>7th Worcester</i>	<i>1/31/2025</i>
<i>Todd M. Smola</i>	<i>1st Hampden</i>	<i>3/10/2025</i>

HOUSE No. 1788

By Representative Jones of North Reading, a petition (accompanied by bill, House, No. 1788) of Bradley H. Jones, Jr., and others relative to increasing the liability for permitting an intoxicated arrestee to operate a motor vehicle. The Judiciary.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 1583 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act increasing the liability for permitting an intoxicated arrestee to operate a motor vehicle.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 90 of the General Laws, as appearing in the 2022 Official Edition, is hereby
2 amended by inserting after section 24X, the following section:-

3 Section 24Y. (a) Any vehicle operated by a person arrested for a violation of
4 subparagraph (1) of paragraph (a) of section 24 or section 24L shall be removed and impounded
5 as provided by the provisions of this section, section 69L of chapter 111 and section 2C of
6 chapter 85 and any rule or regulation adopted thereunder, for a period not less than 12 hours
7 from the time of such arrest.

8 (b) Whenever a person is summoned by or on behalf of a person who has been arrested
9 for a violation of subparagraph (1) of paragraph (a) of section 24 or section 24L, in order to

transport or accompany the arrestee from the premises of a law enforcement agency, the law enforcement agency shall provide that person with a written statement advising that person of the potential criminal and civil liability for permitting or facilitating the arrestee's operation of a motor vehicle while the arrestee remains under the influence or impaired by alcohol, drugs, drugs and alcohol, a controlled dangerous substance, or any combination thereof.

(1) The person to whom the statement is issued shall acknowledge, in writing, receipt of the statement, or the law enforcement agency shall record the fact that the written statement was provided, but the person refused to sign an acknowledgment.

(2) The attorney general shall establish the content and form of the written statement and acknowledgment to be used by law enforcement agencies throughout the commonwealth.

(3) Nothing in this section shall impose any obligation on a physician or other health care provider involved in the treatment or evaluation of the arrestee.

(c) A motor vehicle impounded under this section may not be released unless the person claiming the motor vehicle:

Presents a valid driver's license, proof of ownership of or lawful authority to operate the motor vehicle, and proof of valid motor vehicle insurance for that motor vehicle, or

Subject to review of the district court, meets any other reasonable condition for release that is established by the law enforcement agency.

(d) A law enforcement agency that impounds a motor vehicle under this section may charge a reasonable fee for towing and storage of the motor vehicle and may retain the motor vehicle until the fee is paid.